Approved, SCAO

Original - Court
1st copy - Defendant

2nd copy - Defendant
3rd copy - Plaintiff

STATE OF MICHIGAN JUDICIAL DISTRICT	JUDGMENT LANDLORD-TENANT	CASE NO.
Court address		**Court telephone no.**

Plaintiff

v

Defendant

Plaintiff/Attorney ☐ Personal service

Defendant/Attorney ☐ Personal service

THE COURT FINDS:

by ☐ hearing ☐ default* ☐ consent**

☐ The court determines a valid waiver of rights exists and the terms of the consent judgment are fair.

POSSESSION JUDGMENT

☐ 1. The plaintiff has a right to recover possession of the property.

☐ 2. There is now due to the plaintiff for nonpayment of rent and other money due under the lease:
- a. Rent to retain possession $ _____
- b. Other money due..... $ _____
- c. Costs..... $ _____
- d. Total ..... $ _____

☐ 3. The defendant has a right to retain possession.

IT IS ORDERED:

☐ 4. ☐ a. The plaintiff can apply for an order evicting the defendant if the defendant does not pay the plaintiff or the court the amount due in item 2d above or does not move out on or before _____ (Date) .

☐ b. The plaintiff can apply for an order evicting the defendant if the defendant does not move out on or before _____ (Date) .

☐ c. An immediate order of eviction shall be entered pursuant to MCL 600.5744(3).

☐ 5. The defendant may be liable for money damages after moving if additional rent is owed or if there is damage to the property.

☐ 6. Acceptance of partial payment of the total amount due in item 2d above ☐ will ☐ will not prevent the court from issuing an order evicting the defendant.

☐ 7. No money judgment is entered at this time.

MONEY JUDGMENT

☐ 8. A possession judgment was previously entered.

☐ 9. A money judgment, which will earn interest at statutory rates, is entered as follows:

Damages $ _____
Costs $ _____
Total $ _____

10. **THE COURT FURTHER ORDERS:** _____

Date | Judge | Bar no.

YOU ARE ADVISED that you may file a motion for a new trial, a motion to set aside a default judgment, or an appeal and appeal bond, which must comply with all court rules and must be filed in court by _____ (Date) . You may want legal help.

☐ MCR 4.201(J) was explained to the parties.

*For a defendant on active military duty, default judgment shall not be entered except as provided by the Servicemembers Civil Relief Act.

CERTIFICATE OF MAILING: I certify that on this date I served a copy of this judgment on the parties or their attorneys by first-class mail addressed to their last-known addresses as defined in MCR 2.107(C)(3).

Date | Deputy clerk

**Approved:

Date | Plaintiff/Attorney

Date | Defendant/Attorney